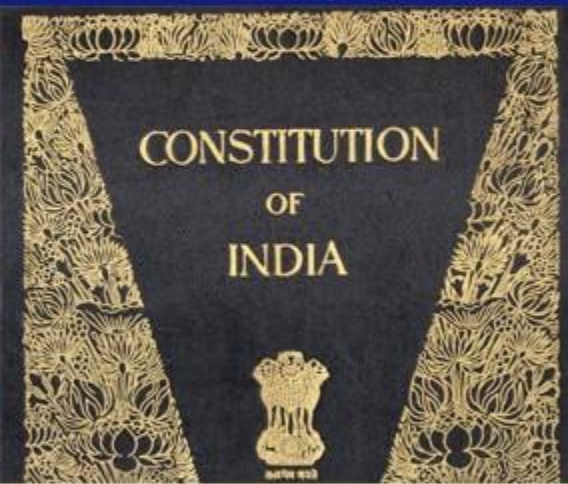


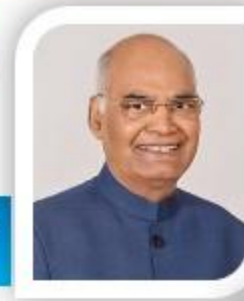
INDIAN POLITY



MODULE - 57

**VICE-PRESIDENT &
ATTORNEY GENERAL**

VICE-PRESIDENT



PRESIDENT



VICE PRESIDENT

PRIME MINISTER



COUNCIL OF
MINISTERS



ATTORNEY GENERAL
OF INDIA



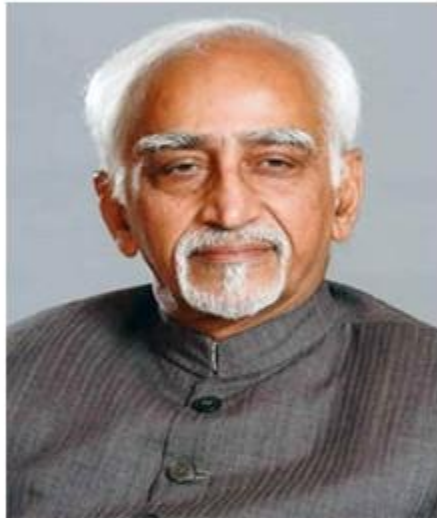
UNION
EXECUTIVE

ELECTION OF VICE-PRESIDENT



- 1 The election of the Vice-President, like that of the President, shall be **indirect** and in accordance with the system of **proportional representation by means of the single transferable vote**.
- 2 But his election shall be different from that of the President in as much as the **State Legislatures shall have no part in it**.
- 3 The Vice-President shall be elected by an electoral college consisting of the **members of both Houses Parliament** [Art. 66(1)].

QUALIFICATIONS FOR ELECTION AS VICE-PRESIDENT



A sitting President or Vice-President of the Union, the Governor of any state and a minister of the Union or any state is not deemed to hold any office of profit and hence qualified as a presidential candidate.

1

As in the case of the President, in order to be qualified to be elected as Vice-President, a person must be

- a) A citizen of India
- b) Has completed 35 years of age
- c) He should be qualified for election as a member of the Rajya Sabha.
- d) He should not hold any office of profit under the Union government or any state government or any local authority or any other public authority.

VICE-PRESIDENT

QUALIFICATIONS FOR ELECTION AS VICE-PRESIDENT



*Vice President is the ex-officio chairman of
Rajya Sabha*

2 But while in order to be a President, a person must be qualified for election as a member of the House of the People, in order to be Vice-President, he must be qualified for **election as a member of the Council of States.**

3 The reason for this difference is obvious, namely, that **the Vice-President is normally to act as the Chairman of the Council of States.**

WHETHER A MEMBER OF LEGISLATURE MAY BECOME PRESIDENT OR VICE-PRESIDENT?



Pranab Mukherjee vacated his Jangipur Lok Sabha seat following his election to President's post

- 1 There is **no bar** to a member of the Union or State Legislature being elected President or Vice-President, but the two offices cannot be combined in one person.
- 2 In case a member of the legislature is elected President or Vice-President, he **shall be deemed to have vacated his seat in that House of the Legislature to which he belongs on the date on which he enters upon his office as President or Vice-President.**

VICE-PRESIDENT

TERM OF OFFICE OF VICE-PRESIDENT

- 1 The term of office of the Vice-President is **five years**.
- 2 His office may terminate earlier than the fixed term either by **resignation or by removal**.



- 3 A **formal impeachment is not required** for his removal.
- 4 He may be removed **by a resolution of the Council of States passed by a majority of its members and agreed to by the House of People**.
- 5 The Vice-President can hold office beyond his term of 5 years until his successor assumes charge.
- 6 He is also eligible for re-election to that office. He may be elected for any number of terms.

VICE-PRESIDENT

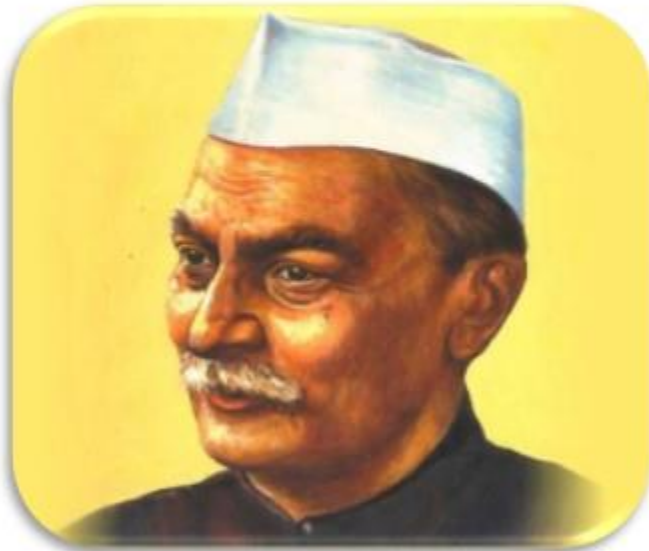
FUNCTIONS OF THE VICE-PRESIDENT

- 1** The Vice-President is the highest dignitary of India, coming next after the President.
- 2** The normal function of the Vice-President is to act as the **ex-officio Chairman of the Council of States**.
- 3** But if there **occurs any vacancy in the office of the President by reason of his death, resignation, removal or otherwise**, the Vice-President shall act as President until a new President is elected and enters upon his office.
- 4** The Vice-President shall discharge the functions of the President during the **temporary absence** of the President, illness or any other cause by reason of which he is unable to discharge his functions.
- 5** **No machinery** having been prescribed by the Constitution to determine **when the President is unable to discharge his duties** owing to absence from India or a like cause.
- 6** It becomes a **somewhat delicate matter** as to who should move in the matter on the any particular occasion.

VICE-PRESIDENT

FUNCTIONS OF THE VICE-PRESIDENT

AN INSTANCE IN HISTORY WHEN THERE WAS
A “TEMPORARY ABSENCE” OF PRESIDENT...



1 It is to be noted that this provision of the Constitution has not been put into use prior to 20th June, 1960, though President Dr. Rajendra Prasad had been absent from India for a considerable period during his foreign tour in the year 1958.

2 It was during the 15-day visit of Dr. Rajendra Prasad to the Soviet Union in June 1960, that for the first time, the Vice-President Dr. Radhakrishnan was given the opportunity of acting as the President owing to the ‘inability’ of the President to discharge his duties.

VICE-PRESIDENT

FUNCTIONS OF THE VICE-PRESIDENT

AN INSTANCE IN HISTORY WHEN THERE WAS A “TEMPORARY ABSENCE” OF PRESIDENT...



3 The second occasion took place in May, 1961, when President **Rajendra Prasad** **become seriously ill** and incapable of discharging his functions.

4 After a few days of crisis, the President himself suggested that the Vice-President should discharge the functions of the President until he resumed his duties.

5 From this context, it appears that the power to determine when the president is unable to discharge his duties or **when he should resume his duties** belong to the President himself.

VICE-PRESIDENT

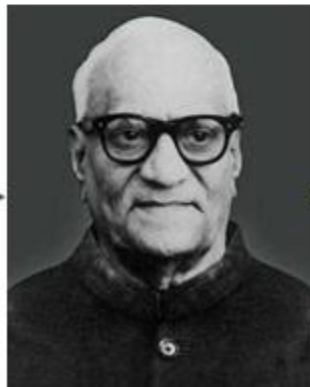
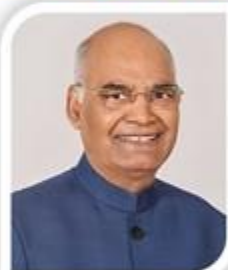
FUNCTIONS OF THE VICE-PRESIDENT

AN INSTANCE IN HISTORY WHEN THERE WAS
A "TEMPORARY ABSENCE" OF PRESIDENT...

PRESIDENT

VICE-PRESIDENT

CJI



6

In the event of occurrence of vacancy in the office of both the President and the Vice-President by reason of death, resignation, removal etc. **the Chief Justice of India or in his absence the seniormost Judge of the Supreme Court** available shall discharge the functions until a new President is elected.

7

When two Presidents, Dr Zakir Hussain and Fakhruddin Ali Ahmed, died in office, the then respective Vice-Presidents, V V Giri and B D Jatti acted as President.

VICE-PRESIDENT EMOLUMENTS

THE PAY STRUCTURE

Post	Current	Revised
President	₹1.5 lakh	₹5 lakh
Vice-Prez	₹1.25 lakh	₹4 lakh
Governor	₹1.10 lakh	₹3.5 lakh



- 1 When the Vice-President acts as, or discharges, the functions of the President, **he gets the emolument of the President**; otherwise he gets the salary of the chairman of the Council of States.
- 2 When the Vice-President thus acts as, or discharges the functions of the President **he shall cease to perform the duties of the Chairman of the Council of States** and then the **Deputy Chairman** of the Council of States shall acts as it.

DOUBTS AND DISPUTES RELATING TO OR CONNECTED WITH ELECTION OF A PRESIDENT OR VICE-PRESIDENT



- 1 Such disputes shall be decided by the **Supreme Court** whose jurisdiction shall be exclusive and final.
- 2 No such dispute can be raised on the **ground of any vacancy in the electoral college** which elected the President or Vice-President.
- 3 If the election of a President or Vice-President is declared void by the Supreme Court, **acts done by him** prior to the date of such decision of the Supreme Court **shall not be invalidated**.

ATTORNEY GENERAL OF INDIA

APPOINTMENT AND TERM

The Constitution (**Article 76**) has provided for the office of the **Attorney General for India**. He is the highest law officer in the country.



1 The Attorney General (AG) is **appointed by the President**. He must be a person who is qualified to be appointed a **judge of the Supreme Court**.

2 In other words, he must be a citizen of India and he must have been a judge of some high court for five years or an advocate of some high court for ten years or an eminent jurist in the opinion of the President.

3 The term of office of the AG is **not fixed by the Constitution**.

ATTORNEY GENERAL OF INDIA

APPOINTMENT AND TERM

4 Further, the Constitution does **not contain the procedure and grounds for his removal.**

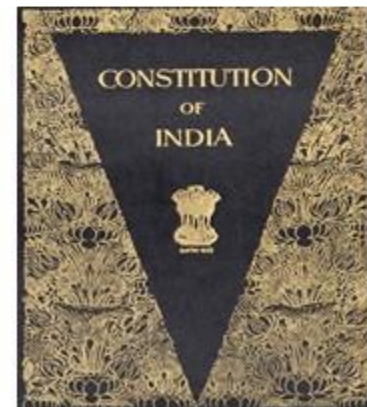
5 He holds office during the **pleasure of the President.**

6 This means that he may be removed by the president at any time.

7 He may also quit his office by **submitting his resignation** to the President.

8 Conventionally, he resigns when the Government (council of ministers) resigns or is replaced, as he is appointed on its advice.

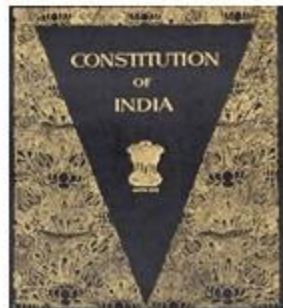
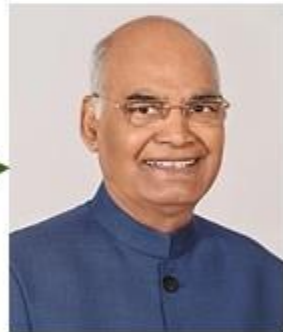
9 The remuneration of the AG is not fixed by the Constitution. He receives **such remuneration as the President may determine.**



ATTORNEY GENERAL OF INDIA

DUTIES AND FUNCTIONS

As the chief law officer of the Government of India, the duties of the Attorney General (AG) include the following:



1 To give advice to the Government of India upon such legal matters, which are referred to him by the president.

2 To perform such other duties of a legal character that are assigned to him by the President.

3 To discharge the functions conferred on him by the Constitution or any other law.

ATTORNEY GENERAL OF INDIA

DUTIES AND FUNCTIONS

The President has assigned the following duties to the AG:



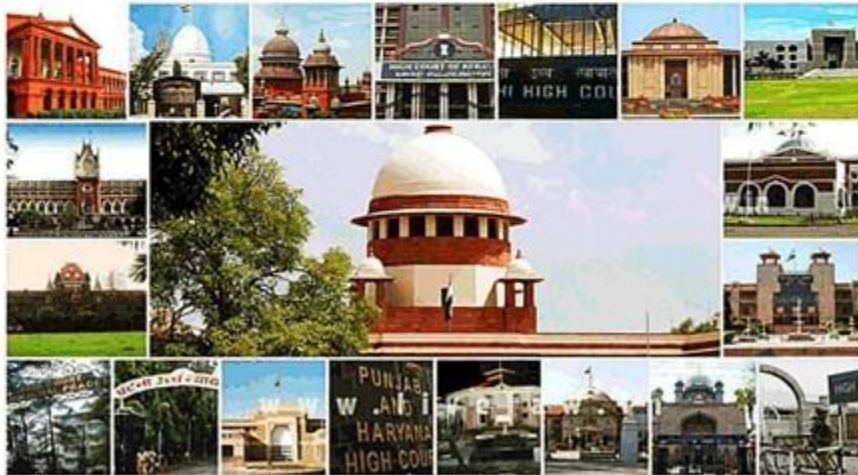
- 1 To appear on behalf of the Government of India in all cases in the Supreme Court in which the Government of India is concerned.
- 2 To represent the Government of India in any reference made by the President to the Supreme Court under Article 143 of the Constitution.
- 3 To appear (when required by the Government of India) in any high court in any case in which the Government of India is concerned.

ATTORNEY GENERAL OF INDIA

RIGHTS AND LIMITATIONS



— PARLIAMENT OF INDIA —



- 1 In the performance of his official duties, the Attorney General has the **right of audience in all courts** in the territory of India.
- 2 Further, he has **the right to speak and to take part in the proceedings** of both the Houses of Parliament or their joint sitting and any committee of the Parliament of which he may be named a member, but **without a right to vote**.
- 3 He **enjoys all the privileges and immunities** that are available to a member of Parliament.

ATTORNEY GENERAL OF INDIA

RIGHTS AND LIMITATIONS

- 4 Following limitations are placed on the Attorney General in order to avoid any complication and conflict of duty:
- 1) He should not advise or hold a brief against the Government of India.
 - 2) He should not advise or hold a brief in cases in which he is called upon to advise or appear for the Government of India.
 - 3) He should not defend accused persons in criminal prosecutions without the permission of the Government of India.
 - 4) He should not accept appointment as a director in any company or corporation without the permission of the Government of India.

- 5 However, the Attorney General is not a full-time counsel for the Government.
- 6 He does not fall in the category of Government servants.
- 7 Further, he is not debarred from private legal practice.



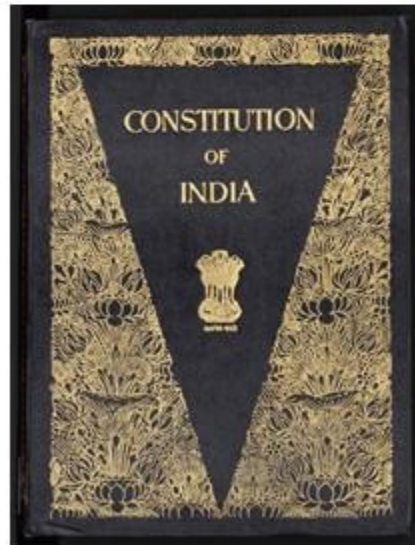


- 1 In addition to the AG, there are other law officers of the Government of India.
- 2 They are the **solicitor general of India** and **additional solicitor general of India**.
- 3 They **assist the AG** in the fulfilment of his official responsibilities.
- 4 It should be noted here that only the office of the AG is created by the Constitution.
- 5 In other words, Article 76 does not mention about the Solicitor General and Additional Solicitor General.

ATTORNEY GENERAL OF INDIA

ARTICLES RELATED TO ATTORNEY-GENERAL OF INDIA

ARTICLE NO.	SUBJECT-MATTER
76	Attorney-General of India
88	Rights of Attorney-General as respects the Houses of Parliament and its Committee
105	Powers, privileges and immunities of Attorney-General



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